

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES
WILLIAMS,

Index No.:

Date Purchased:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. DANIEL MARDJONOVIC OF
PBBX 40TH PCT, SHIELD # 6391 AND P.O. BENITO
CRUZ OF PBBX 40TH PCT, SHIELD # 1486,

Defendants.

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Plaintiffs, by their attorneys, GETZ & BRAVERMAN, P.C., complaining of the Defendant,
respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **JOSHIA WILLIAMS** resided in the County of Orange, City and State of New York.
2. That at the time of the commencement of this action, Plaintiff **OTHA WILLIAMS** resided in the County of Bronx, City and State of New York.
3. That at the time of the commencement of this action, Plaintiff **MILES WILLIAMS** resided in the County of Orange, City and State of New York.
4. That the cause of action alleged herein arose in the County of Bronx, City and State of New York.

5. That on June 17, 2022, and at all times herein mentioned, Defendant **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** was, and still is, a municipal corporation.
6. Upon information and belief, and at all times hereinafter mentioned, **NEW YORK CITY POLICE DEPARTMENT**, its agents, servants and employees supervised, maintained and controlled its personnel.
7. Upon information and belief, at all times mentioned, Defendants **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, SHIELD # 6391 AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
8. That on August 10, 2022, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
9. That a General Municipal Law 50(h), a hearing has not being held.
10. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

AS AND FOR THE FIRST CAUSE OF ACTION

11. Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs marked "1" through "10" with the same force and effect as if more fully set forth herein.
12. That on or about June 17, 2022, Plaintiffs, **JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES WILLIAMS**, were wrongfully and falsely arrested, detained, and imprisoned, without any right or grounds therefore.
13. That on or about June 17, 2022, the defendants acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiffs, **JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES WILLIAMS**, of the crimes of possession of a fire arm, criminal possession of a weapon and possession of ammunition.
14. Upon information and belief, on or about June 17, 2022 and from that time until the dismissal of charges which was a favorable termination for the accused by the Bronx County Criminal Court, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, planted a fire arm in the motor vehicle in which Plaintiffs were passengers and deliberately and maliciously testified in the Grand Jury, for the purpose of falsely accusing the Plaintiffs, **JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES WILLIAMS**, innocent males without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiffs of violations of the criminal laws of the State of New York.

15. That the said arrest and imprisonment of Plaintiffs, **JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES WILLIAMS**, were caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiffs, **JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES WILLIAMS**, were in fact guilty of such crimes.
16. That the said arrest of the plaintiffs herein were caused, allowed and permitted by the Defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been made.
17. That the defendant, their agents, servants and/or employees falsely arrested the plaintiffs, compelled them to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiffs at other diverse places and times, including, but not limited to, precinct in the station-house in the County of Bronx, City and State of New York and Central Booking located in the Borough of Bronx, City and State of New York.
18. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiffs herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiffs, directed that the plaintiffs be, arrested, searched, detained and placed in confinement at said locations.

19. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiffs **JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES WILLIAMS** were falsely, publicly, and maliciously accused.
20. That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiffs herein; plaintiffs were conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.
21. That the aforesaid occurrence, false arrest and imprisonment of the plaintiffs, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiffs herein.
22. That by reason of the aforesaid, the plaintiffs were subjected to great indignities, humiliation and ridicule; was greatly injured in their credit and circumstances; were prevented from performing and transacting their necessary affairs and business; and were incapacitated from their usual occupation.
23. That by reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

24. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "23", with the same force and effect as if more fully and

at length set forth herein.

25. That on or about the June 17, 2022, and prior and subsequent thereto, in the County of Bronx City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiffs with deliberate indifference.
26. That the plaintiffs were wholly innocent, and were forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.
27. That on or about the 17th day of June, 2022, and prior and subsequent thereto, the defendants, their agents, servants and employees falsely and maliciously, without probable cause or provocation charged the Plaintiffs with various crimes, including felonies, misdemeanors and violations.
28. That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiffs' favor.
29. That the aforesaid occurrence, false arrest, imprisonment of the plaintiffs and malicious prosecution, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiffs.
30. That by reason of the aforesaid, the plaintiffs still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; were greatly injured to

their credit and circumstances; was prevented from performing and transacting their necessary affairs and business; and were incapacitated from their usual occupations. Upon information and belief, the plaintiffs have expended diverse sums of monies, in an effort to extricate themselves from the imprisonment, indignities and humiliation foisted upon them by the action of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.

31. That by reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

32. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "31", with the same force and effect as if more fully set forth herein.
33. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiffs in violation of the law by; in that they caused, permitted and allowed the plaintiffs to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of their civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiffs, in that they made false accusations on or about June 17, 2022; **in that the Defendants, P.O. DANIEL**

MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496, deliberately planted a firearm in the vehicle in which Plaintiffs were passengers; in that they caused the imprisonment of the Plaintiffs in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

34. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they caused, permitted and allowed the plaintiffs to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of their civil rights; in that they sued the threat of imprisonment, and actually caused the imprisonment of the plaintiffs, in that they made false accusations on or about June 17, 2022, in that the defendants, their agents, servants and/or employees failed to recognize that Plaintiffs' right had been unjustly violated, and in that the defendants, their agents, servants and/or employees were otherwise careless , reckless and negligent.
35. That the aforesaid occurrence, false arrest and imprisonment of the Plaintiffs, malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiffs herein.
36. That by reason of the aforesaid, the Plaintiffs have been subjected to great indignities, humiliation and ridicule; were greatly injured in their credit and circumstances; were

prevented from performing and transacting his necessary affairs and business. Upon information and belief Plaintiffs have expended diverse sums of monies and incurred debt, in an effort to extricate themselves from the imprisonment, indignities and humiliation foisted upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AND AS FOR A FOURTH CAUSE OF ACTION
AS OF PLAINTIFF JOSHIA WILLIAMS

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "14", with the same force and effect as if more fully and completely set forth at length herein.
38. That on or about June 17, 2022 while the Plaintiff **JOSHIA WILLIAMS** was under arrest, was caused to sustained severe, serious and permanent injuries due to the negligence of Defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496.**
39. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, and willfully had the real or apparent ability to cause imminent harmful to Plaintiff **JOSHIA WILLIAMS** causing Plaintiff to sustained a severe injury to his left shoulder, requiring surgery.
40. That by reason of the aforesaid, the defendants **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496** their agents, servants and employees, acting within the scope of their authority and without probable or reasonable cause, caused the Plaintiff to suffer great bodily injury in and about

his anatomy and was rendered sick, sore, lame and disabled, and among other things, he suffered conscious pain and suffering and otherwise damaged.

41. That by reason of the aforesaid, the Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower Courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "41" inclusive with the same force and effect as if more fully and at length set forth herein.
43. That the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendants; in that the defendant lacked the maturity, sensibility and intelligence to be employed by the defendants; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.
44. That the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, savvy, knowledge,

deportment and ability to be employed by the defendant, **NEW YORK CITY POLICE DEPARTMENT**; in that defendants failed to exercise due to care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendant; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

45. That the aforesaid occurrence, the false arrest and imprisonment, malicious prosecution, negligence in performance of duties and negligence in hiring and retention and the resulting injuries to mind therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiffs.
46. That by reason of the aforesaid, the Plaintiffs has been subjected to indignities and humiliation was greatly injured in his credit and circumstances caused by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.
47. That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SIXTH CAUSE OF ACTION

48. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "47" inclusive with the same force and effect as if more fully and at length set forth herein.
49. That the defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting within their scope and authority of their office and employment, in their capacity as a law enforcement office, was negligent and careless in the supervision, maintenance and control of police officers under their supervision and more particularly the supervision of the members of **NEW YORK CITY POLICE DEPARTMENT**, in that the defendants failed to exercise due care and caution in their supervision of same and in particular causing, permitting and allowing police officers under their supervision, and more particularly the defendants' agents, servants, employees and/or licensees, to act in a careless, reckless and negligent manner without administering proper control, discipline and supervision thereby allowing police officers involved herein, to act in an unlawful and illegal manner; in causing, permitting and allowing persons within the employ of the **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, search plaintiffs, **JOSHIA WILLIAMS, OTHA WILLIAMS AND MILES WILLIAMS**, in that the defendants knew, or should have known, of the lack of ability, experience, deportment and maturity of the said defendant police officers under their care, supervision and control and more particularly those police officers with a propensity to act in unlawful and illegal manner; and that said agents, servants and employees failed to properly investigate actions taken by police officers under their care, supervision and control, and were otherwise careless and negligent.

50. That the aforesaid occurrence, false arrest and imprisonment of the Plaintiffs, malicious prosecution, negligent performance of duties, negligent hiring and retention and negligent supervision and training, was caused solely wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiffs herein.
51. That by reason of the aforesaid, the Plaintiffs have been subjected to great indignities, humiliation and ridicule, was greatly injure in their credit and circumstances; were prevented from performing and transacting their necessary affairs and business; and was prevented to perform their usual occupation. Upon information and belief, Plaintiffs have expended and incurred diverse sums of money in an effort to extricate themselves from the indignities and humiliation imposed upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.
52. That by the reason of the aforesaid, the Plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SEVENTH CAUSE OF ACTION

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "52" inclusive with the same force and effect as if more fully and at length set forth herein.
54. That on or about June 17, 2022, in the County of Bronx, City and State of New York, at which time and place Defendants **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT,**

AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496, were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.

55. As plaintiff was lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, Defendants **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, who having the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the arrest, detention, prosecution and imprisonment of the Plaintiffs, did so threaten these acts upon the plaintiff, and did so cause the Plaintiffs herein to be arrested, detained, prosecuted and imprisoned, stripped and searched and in violation of Plaintiffs' civil rights; in ailing to recognize, detect and investigate same; in revoking the rights of the plaintiffs herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the Plaintiffs.
56. That defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, failed to properly and adequately ascertain that Plaintiffs were not in violation of the law and that plaintiffs were detained, prosecuted and imprisoned for an extended period of time, depriving them of their rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed them and threatened Plaintiffs with the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to

imprison, the Plaintiffs without any conduct on the part of the Plaintiffs to so warrant, to wit: in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause economic and mental injury to the Plaintiffs, arrested, detained, prosecuted and imprisoned the without their consent; Plaintiffs were at all times conscious of their arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment; and the arrest, detainment, prosecution and imprisonment was not otherwise privileged;

- b) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of New York, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.
- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving him of his freedom and civil rights as guaranteed by the

Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,

- d) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any way.

57. Defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, did not have probable cause to arrest, detain, prosecute and imprison the Plaintiffs before, after or at the time of this incident and deprive Plaintiffs of their Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

58. Defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, did not have probable cause to arrest, detain, prosecute and imprison Plaintiffs before, after or at the time of this incident, and failed to properly safeguard the plaintiffs' Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

59. As a direct result of the aforesaid actions and conduct of the part of the said defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, Plaintiffs were falsely arrested, detained, prosecuted and imprisoned and was compelled to be arraigned and appear in the Criminal Court system of the City and State of New York, County of Bronx and to undergo a criminal proceedings.
60. That at all times hereinafter mentioned, the defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
61. That at all times hereinafter mentioned, defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT, AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YOR CITY POLICE DEPARTMENT** and acting within the scope and authority of his/their employment and office.
62. That at all times hereinafter mentioned, defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YORK**

CITY POLICE DEPARTMENT within the scope and authority of their employment and office.

63. That at all times hereinafter mentioned, defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, were acting pursuant to, and within the scope and authority of their employment and office.
64. That during all times hereinafter mentioned, the defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the Plaintiffs and deprived plaintiff by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.
65. The defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, were employed by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting under color of law, have subjected plaintiffs and other persons to a pattern of conduct consisting of false arrest, detention, prosecution and imprisonment and that said defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD #**

1496, did not confer due process upon the plaintiff herein, and in denied the rights, privileges and immunities guaranteed Plaintiffs and other citizens of the United States of America by the Constitution of the United States of America.

66. This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of **NEW YORK CITY POLICE DEPARTMENT** and more particularly the defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT** AND **P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, in acting in concert with persons unknown to the Plaintiffs and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which police officers my properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.
67. Although defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARMENT**, knew or should have known of the fact that this pattern of conduct was carried out by, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other Citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

68. The conduct of the defendants, **P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, deprived Plaintiffs of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- b) The right of plaintiff no to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the fourteenth Amendment to the Constitution of the United States.

69. That by reason of the aforesaid negligence, false arrest and false imprisonment, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent training and supervision, and violation of civil rights caused by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT**, acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiffs, and compel them to abandon their rights and privileges as provided to them in the Constitution of the United States of

America, and provided to them in the Constitution of the State of New York, and laws thereto, the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, violated 42 U.S.C. Sec. 1983 in that the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, acted as persons who under color of any statute, ordinances, regulation, custom or usage of the City of New York and the State of New York, subjected or caused to be subjected, citizens of the United States of America or other persons within the jurisdiction, particularly the Plaintiffs thereof to be deprived of their rights, privileges and immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and was held up to scorn and ridicule, injured their character and reputation, was prevented from attending their usual business and vocation and were injured in their reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging Plaintiffs.

70. That the aforesaid occurrence, false arrest and imprisonment of the Plaintiffs, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent supervision and training and violation of civil rights, was cause

solely and wholly by reason of the negligence of the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. DANIEL MARDJONOVIC OF PBBX 40TH PCT AND P.O. BENITO CRUZ OF PBBX 40TH PCT, SHIELD # 1496**, without any negligence on the part of the Plaintiffs herein.

71. That by reason of the aforesaid, the Plaintiffs have been subjected to great indignities, humiliation and ridicule; was greatly injured in their credit and circumstances; were prevented from performing and transacting their necessary affairs and business; and they were incapacitated from their usual occupation. Upon information and belief, Plaintiffs have expended diverse sums of monies, and incurred debt, in an effort to extricate themselves from the imprisonment, indignities and humiliation foisted upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.
72. That by reason of the aforesaid, the Plaintiffs requests the following relief:
 - a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
 - b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiffs demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York

August 1, 2023

Yours, etc.

MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.

Attorneys for Plaintiff(s)

**JOSIAH WILLIAMS, MILES WILLIMAS
AND ORHA WILLIAMS**

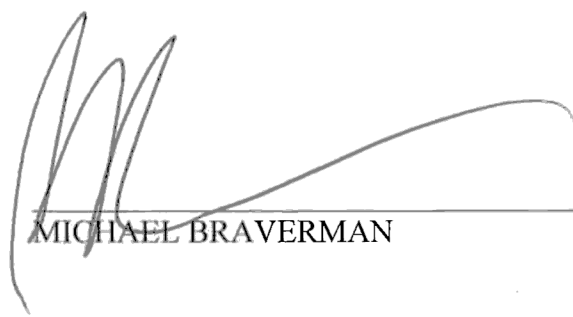
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Our File No. 9775

ATTORNEY'S VERIFICATION

MICHAEL BRAVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at **GETZ & BRAVERMAN, P.C.**, attorneys of record for Plaintiffs, **JOSHIA WILLIAMS, OTHAT WILLIAMS & MILES WILLIAMS**, I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Bronx, New York
August 7, 2023



MICHAEL BRAVERMAN

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSHIA WILLIAMS, OTHA WILLIAMS
AND MILES WILLIAMS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. DANIEL MARDJONOVIC
OF PBBX 40TH PCT, SHIELD # 6391 AND P.O. BENITO
CRUZ OF PBBX 40TH PCT, SHIELD # 1496,

Defendants.

VERIFIED SUMMONS AND COMPLAINT

GETZ & BRAVERMAN, P.C.
Attorneys for JOSIAH WILLIAMS, OTHA WILLIAMS & MILE WILLIAMS
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

TO: